THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF ISLINGTON

and

THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF CAMDEN

AMENDED AND RESTATED ACCESS AGREEMENT FOR THE NO RECOURSE TO PUBLIC FUNDS (NRPF) CONNECT DATA SHARING SERVICE

Islington Legal Services
Islington Council
7 Newington Barrow Way
London N7 7EP
Ref: ROC/BEQU/36

THIS AGREEMENT is made the 1ST day of JULY 2018

BETWEEN

The Mayor and Burgesses of the London Borough of Islington of Town Hall, Upper Street, Islington, London N1 2UD ("the **Council**"); and

The Mayor and Burgesses of the London Borough of Islington of Town Hall , Judd Street , Camden London WC1H 9BD

("the **User**")

WHEREAS

A. The NRPF Network is a network of local authorities established in 2006 to focus on the statutory response to people with care needs who have no recourse to public funds. The aims of the NRPF Network are to share information and good practice amongst local authorities, to work with government departments to raise practical and policy issues and to develop a strategic response to NRPF. It is hosted by the Council.

B. The NRPF Network, together with the Home Office, has developed NRPF Connect which is a secure data sharing system for local authority social services departments and the Home Office working with migrants who have no recourse to public funds.

C. NRPF Connect allows the Home Office and local authorities to be updated on each other's work on NRPF cases and for changes in circumstances to be communicated.

D. NRPF Connect is a case management system that is provided by MAG:NET Solutions Ltd under a contract with the Council.

E. The User wishes to access NRPF Connect in accordance with the terms of this Agreement

F. This Agreement is entered into pursuant to section 3 of the Local Government Act 1999 and section 1 of the Localism Act 2011.

IT IS HEREBY AGREED as follows: -

1. DEFINITIONS AND INTERPRETATIONS

1.1 In the Agreement unless the context otherwise requires the following terms shall have the meanings given to them below:

"Annual Membership Fee"
means the fee for option 2 as set out in schedule 3 to be paid by the User to the Council adjusted for inflation on each anniversary of the Commencement Date in line with the General Index of Retail Prices (RPIX).

"Commencement Date"
means 1st of June of 2019 or such alternative date as may be agreed between the Parties in writing.

"Confidential Information"
means any information which has been designated as confidential by a Party in writing or that ought to be considered as confidential (however it is conveyed or on whatever media it is stored) including information which relates to the business, affairs, properties, assets, trading practices, Services, developments, trade secrets, Intellectual Property Rights, know-how, personnel, customers and suppliers of a Party, all personal data and sensitive personal data within the meaning of the Data Protection Act 2018 and information in relation to the Service.

"Council Services"
means the NRPF Connect services provided by the Council as set out in Schedules 3 and 4.

"Council's Personnel"
means all directors, officers, employees, agents, consultants and contractors of the Council and/or of any Sub-Provider engaged in the performance of its obligations under this Agreement;

"Data Protection Legislation"
(I) the GDPR, the LED and any applicable national implementing Laws as amended from time to time (ii) the DPA 2018 to the extent that it relates to processing of personal data and privacy; (iiii) all applicable Law about the processing of personal data and privacy;

"Data Protection Impact Assessment"
an assessment by the Controller of the impact of the envisaged processing on the protection of Personal Data;

"Data Loss Event"
any event that results, or may result, in unauthorised access to Personal Data held by the Provider under this Agreement, and/or actual or potential loss and/or destruction of Personal Data in breach of this Agreement, including any Personal Data Breach;

"Data Subject Access Request"
a request made by, or on behalf of, a Data Subject in accordance with rights granted pursuant to the Data Protection Legislation to access their Personal Data;

"DPA 2018"
means Data Protection Act 2018

"GDPR"
means the General Data Protection Regulation (Regulation (EU) 2016/679)

"Home office"

means the ministerial department of the UK government.

"Home Office Data"

means data provided by the Home Office in accordance with the provisions of this agreement.

"Information Sharing Protocol"

is as set out in Schedule 1.

"Law"

means any law, subordinate legislation within the meaning of Section 21(1) of the Interpretation Act 1978, bye-law, enforceable right within the meaning of Section 2 of the European Communities Act 1972, regulation, order, regulatory policy, mandatory guidance or code of practice, judgment of a relevant court of law, or directives or requirements with which the Provider is bound to comply;

"LED"

Law Enforcement Directive
(Directive (EU) 2016/680)

"Losses" means all claims, damages, losses, liabilities, costs, expenses (including legal and other professional charges and expenses) and charges whether arising under statute, contract or at common law, or in connection with judgements, proceedings, internal costs or demands.

"Local Authority Data"

means the data provided by the User as may be updated by the Home Office as more particularly described in Schedule 2 for use by the Council for the Purpose.

"NRPF" means no recourse to public funds;

"NRPF Connect"

means the secure data sharing Service for local authority social services departments and the Home Office working with migrants who have no recourse to public funds.

"NRPF Network"

means the network of local authorities hosted by the Council and established in 2006 to focus on the statutory response to people with care needs who have no recourse to public funds with the aims of sharing information and good practice amongst local authorities, working with government departments to raise practical and policy issues, and developing a strategic response to NRPF.

"Other Users of NRPF Connect"

means the local authorities and the Home Office who have entered into an access agreement with the Council in order to use NRPF Connect.

"Party" means a party to this Agreement and **"Parties"** shall be construed accordingly

"Protective Measures"

appropriate technical and organisational measures which may include: pseudonymising and encrypting Personal Data, ensuring confidentiality, integrity, availability and resilience of systems and services, ensuring that availability of and access to Personal Data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of such measures adopted by it;

"Provider's Personnel"

means all directors, officers, employees, agents, consultants and contractors of the Provider and/or of any Sub-Provider engaged in the performance of its obligations under this Agreement;

"Purpose" means the purpose for which the Council may use the Home Office Data, being the purpose of building a national evidence base on which to make policy recommendations to the Home Office and other local authorities with the aim of improving the quality and efficiency of services provided to the NRPF client group.

"Service" means Service Provider Services and Council Services.

"Service Provider"

means MAG:NET Solutions Limited

"Service Provider Contract"

means the contract to be entered into between the Council and the Service Provider for the provision of data base services in the form set out in Schedule 5

"Service Provider Services"

means the NRPF Connect services provided by the Service Provider as set out in Schedules 3 and 4.

"Sub-processor"

any third Party appointed to process Personal Data on behalf of the Provider related to this Agreement.

1.2 In this Agreement where the context so admits:

1.2.1 references to the singular shall include the plural and vice versa and references to any gender shall include all genders;

1.2.2 the headings are for ease of reference only and shall not affect the construction or interpretation of this Agreement;

1.2.3 references to Conditions are, unless otherwise provided, references to the Conditions of this Agreement and references to Schedules are to the schedules of the Agreement.

2. TERM

This Agreement shall commence on the Commencement Date and shall continue until terminated in accordance with Condition 9 of this Agreement.

3. OBJECTIVES OF NRPF CONNECT

3.1 The objectives of NRPF Connect for local authority users are to :-

3.1.1 Facilitate better joint working between local authorities and the Home Office in order to encourage speedier resolution of NRPF cases, saving the tax payer money;

3.1.2 Help identify fraudulent claims for local authority support by cross-matching records from other local authorities;

3.1.3 Allow the Home Office and local authorities to update case records and to inform each other of changes in circumstance so as to avoid unnecessary delays;

3.1.4 Provide a good practice framework for case-managing NRPF individuals and families;

3.1.5 Enable local authorities to follow a simple and logical process for recording, assessing and monitoring NRPF cases, including expenditure;

3.1.6 Reduce the risks of poor case-working decisions being made, where information is not being shared between local authorities and the Home Office;

3.1.7 Enable local authorities to monitor cases if they move from borough to borough, identifying any child or adult safeguarding concerns and notifying the relevant professionals;

3.1.8 Give local authorities a way to account for the NRPF cases they support and to monitor expenditure;

3.1.9 Eliminate the risks associated with exchanging sensitive data with the Home Office via spread sheets and by email;

3.1.10 Enable local authorities to run reports on the cases they support, providing detailed data on a range of indicators such as expenditure and referrals.

3.2 The objectives of NRPF Connect for the Home Office are to:-

3.2.1 Assist the Home Office in securing savings by working in partnership with local authorities to manage NRPF cases more efficiently;

3.2.2 Provide access for the Home Office to the expertise of local authority professionals in order to meet Home Office targets and strategic objectives, such as facilitating removals, voluntary returns and deciding immigration applications expediently;

3.2.3 Assist in the control of migration through providing a more complete picture of supported NRPF cases enabling the Home Office to speed-up decision making;

3.2.4 Assist in making data collection more efficient and economical through dialogue with all the users of NRPF Connect.

4. ROLES AND RESPONSIBILITY OF THE COUNCIL

4.1 The Council shall:

4.1.1 Carry out the Services for which it is directly responsible in compliance with this Agreement and all relevant legislation and with due professional skill, care and diligence and with good faith;

4.1.2 Manage the Service Provider Contract in order to ensure proper delivery of the Services for which the Service Provider is responsible;

4.1.3 Consult with and receive feedback from the User and other users of the Service and take such feed back into consideration in exploring ways to improve the Service;

4.1.4 Maintain an updated list of all the organisations who are users of NRPF Connect and make that list publicly available;

4.1.5 Undertake to use the Local Authority Data only in an anonymised form and only for the Purpose.

5. ROLES AND RESPONSIBILITIES OF THE USER

5.1 The User shall: -

5.1.1 Pay the Annual Membership Fee to the Council on the Commencement Date and thereafter on each anniversary of the Commencement Date for the duration of this Agreement;

5.1.2 Create, maintain and close files for NRPF cases as set out in the Information Sharing Protocol;

5.1.3 When instructing the Service Provider do so in accordance with condition 3.12 of the Service Provider Contract;

5.1.4 Hereby grant to the Council a licence to use the Local Authority Data for the Purpose for the duration of this Agreement;

5.1.5 Hereby grant to the Home Office and Other Users of NRPF Connect a licence to use, in accordance with the Information Sharing Protocol, the information provided by the User for purposes of this agreement.

5.1.6 Indemnify the Council for any Losses incurred by the Council in, or in connection with, or in the course of or as a result of the Council performing, or discharging its roles and/or responsibilities under this Agreement.

PROVIDED THAT

(i) the Council shall be solely responsible for bearing any such Losses to the extent that they are incurred by reason or in consequence of the negligence or wilful misconduct of the Council or persistent breach by the Council of any law or duty

(ii) The Council shall use reasonable endeavours to minimise the Losses that are the subject of the indemnity

5.1.7 Hereby undertake to each of the Other Users of NRPF Connect that it shall comply with the obligations of the User set out in this agreement (including the Information Sharing Protocol). This undertaking confers rights on each of the Other Users of NRPF Connect who are not party to this Agreement who shall by virtue of the Contracts (Rights of Third Parties) Act 1999 be entitled to enforce those rights as if it was a party to this Agreement.

6. LIABILITY AND INDEMNITY

6.1 The Council shall be liable for and shall fully indemnify the User, its officers, employees and agents against all liabilities, damages, costs, losses, claims, demands and proceedings arising from any deliberate or negligent act, default omission and or breach of this Agreement by the Council or any of its sub-contractors or employees except to the extent that such liabilities, damages, costs, losses, claims, demands and/or proceedings arise out of any act of wilful default or negligence by the User.

6.2 The Council's liability to the User under Condition 6.1 above shall be without prejudice to any other right or remedy available to the User.

7. VARIATIONS

Variations or modifications to the terms of this Agreement may be made by agreement between the Parties in writing.

8. NON-PERFORMANCE AND DISPUTE RESOLUTION

8.1 The Council shall notify the User immediately of any difficulties that arise and affect the delivery of the Services in accordance with this Agreement.

8.2 The User shall provide notice in writing to the Council if it determines that the Services or any part of them have not been carried out in accordance with this Agreement.

8.3 The Parties shall endeavour to find a mutually agreeable solution to overcome any difficulties that affect the provision of the Service.

8.4 In the event that there is no agreement on a solution either Party may, after providing notice in writing to the other Party, do one or more of the following:

8.4.1 Require the Party in default to remedy the default within a specified time scale;

8.4.2 Terminate the Agreement in accordance with Condition 9 where there is a material breach of the Agreement which is incapable of remedy.

9. TERMINATION

9.1 This Agreement may be terminated by either Party with written notice with immediate effect if;

9.1.1 One Party (the "Defaulting Party") commits a breach of this Agreement and fails to remedy such breach (if capable of remedy) within the timescales stated in a notice issued by the other Party stating the breach; or

9.1.2 The Defaulting Party commits a breach of this Agreement which is incapable of remedy

9.1.3 Either Party is prevented from fulfilling its obligations (or part thereof) under this Agreement for a period of longer than thirty days for reasons beyond its reasonable control.

9.2 Notwithstanding the provisions of Condition 9.1 above and subject to Condition 9.3 below the User shall be entitled to terminate this Agreement on giving the Council not less than three months' notice in writing.

9.3 Termination of the Agreement pursuant to Condition 9.2 shall not relieve the User from its obligation to pay the full Annual Membership Fee in respect of the year during which termination occurs. For the avoidance of doubt no refund of the Annual Membership Fee shall be made by the Council to the User for termination of the Agreement pursuant to Condition 9.2.

9.4 Notwithstanding the provisions of Condition 9.1 above and subject to Condition 9.5 below the Council shall be entitled to terminate this Agreement on giving the User not less than six months' notice in writing.

9.5 Where the Agreement is terminated pursuant to Condition 9.4 the User shall be entitled to recover from the Council pro rata that part of the Annual Membership Fee that relates to the period for which the Annual Membership Fee was paid but during which no Services were provided as a result of the termination of the Agreement.

9.6 In the event that the Service Provider Contract is terminated for whatever reason, this Agreement will terminate with effect from the date of the termination of the Service

Provider Contract, unless the Council has made arrangements for procuring a new service provider.

9.7 The exercise of rights to terminate this Agreement shall not affect any existing rights or obligations of either Party.

10. DATA SHARING AND CONFIDENTIALITY

10.1 The User hereby acknowledges that it is a data controller for purposes of the DPA 2018 and GDPR in respect of the data that is shared under this Agreement, to the extent that the User creates or modifies the relevant records. For the avoidance of doubt, the User is a data controller only in relation to the data for which it has "write" access as more particularly set out in the Information Sharing Protocol.

10.2 The Parties shall comply with all their respective duties and responsibilities in relation to information sharing, data security and confidentiality as set out in the Information Sharing Protocol and any Loss incurred as a result of a breach of the Information Sharing Protocol shall be deemed to be a Loss under this Agreement.

10.3 The provisions of this Condition 10 shall apply during the term of this Agreement and continue to apply indefinitely after its expiry or termination.

10.4 The Parties shall co-operate and assist each other in responding to any requests made under the Freedom of Information Act 2000 which related to NRPF Connect.

11. DATA PROTECTION: SERVICE PROVIDER SERVICES

11.1 In relation to Service Provider Services the User acknowledges that the Service Provider is a data processor for purposes of the DPA 2018 and GDPR and the Service Provider Contract at Clause 17 sets out provisions for data protection.

12. DATA PROTECTION: COUNCIL SERVICES

12.0 For the purposes of this Condition 12 the terms **"Controller"**, **"Processor"**, **"Data Subject"**, **"Personal Data"**, **"Personal Data Breach"**, and **"Data Protection Officer"** take the meaning given in the GDPR.

12.1 The Parties acknowledge that for the purposes of the Data Protection Legislation, the User is the Controller and the Council is the Processor. The only processing that the Council is authorised to do is listed in Schedule 4 by the User and may not be determined by the Council.

12.2 The Council shall notify the User immediately if it considers that any of the User's instructions infringe the Data Protection Legislation.

12.3 The Council shall provide all reasonable assistance to the User in the preparation of any Data Protection Impact Assessment prior to commencing any processing. Such assistance may, at the discretion of the User, include:

(a) a systematic description of the envisaged processing operations and the purpose of the processing;

(b) an assessment of the necessity and proportionality of the processing operations in relation to the Council Services;

(c) an assessment of the risks to the rights and freedoms of Data Subjects; and

(d) the measures envisaged to address the risks, including safeguards, security measures and mechanisms to ensure the protection of Personal Data.

12.4 The Council shall, in relation to any Personal Data processed in connection with its obligations under this Agreement:

(a) process that Personal Data only in accordance with Schedule 4 unless the Council is required to do otherwise by Law. If it is so required the Council shall promptly notify the User before processing the Personal Data unless prohibited by Law;

(b) ensure that it has in place Protective Measures, which have been reviewed and approved by the User as appropriate to protect against a Data Loss Event having taken account of the:

(i) nature of the data to be protected;

(ii) harm that might result from a Data Loss Event;

(iii) state of technological development; and

(iv) cost of implementing any measures;

(c) ensure that:

(i) the Council's Personnel do not process Personal Data except in accordance with this Agreement (and in particular Schedule 4);

(ii) it takes all reasonable steps to ensure the reliability and integrity of any Council's Personnel who have access to the Personal Data and ensure that they:

(ii-1) are aware of and comply with the Council's duties under this clause;

(ii-2) are subject to appropriate confidentiality undertakings with the Council or any Sub-processor;

(ii-3) are informed of the confidential nature of the Personal Data and do not publish, disclose or divulge any of the Personal Data to any third Party unless directed in writing to do so by the User or as otherwise permitted by this Agreement; and

(ii-4) have undergone adequate training in the use, care, protection and handling of Personal Data; and

(d) not transfer Personal Data outside of the EU unless the prior written consent of the User has been obtained and the following conditions are fulfilled:

(i) the User or the Council has provided appropriate safeguards in relation to the transfer (whether in accordance with GDPR Article 46 or LED

Article 37) as determined by the User;

(ii) the Data Subject has enforceable rights and effective legal remedies;

(iii) the Council complies with its obligations under the Data Protection Legislation by providing an adequate level of protection to any Personal Data that is transferred (or, if it is not so bound, uses its best endeavours to assist the User in meeting its obligations); and

(iv) the Council complies with any reasonable instructions notified to it in advance by the User with respect to the processing of the Personal Data;

12.5 Subject to clause 12.6, the Council shall notify the User immediately if it:

(a) receives a Data Subject Access Request (or purported Data Subject Access Request);

(b) receives a request to rectify, block or erase any Personal Data;

(c) receives any other request, complaint or communication relating to either Party's obligations under the Data Protection Legislation;

(d) receives any communication from the Information Commissioner or any other regulatory authority in connection with Personal Data processed under this Agreement;

(e) receives a request from any third Party for disclosure of Personal Data where compliance with such request is required or purported to be required by Law; or

(f) becomes aware of a Data Loss Event.

12.6 The Council's obligation to notify under clause 12.5 shall include the provision of further information to the User in phases, as details become available.

12.7 Taking into account the nature of the processing, the Council shall provide the User with full assistance in relation to either Party's obligations under Data Protection Legislation and any complaint, communication or request made under clause 12.5 (and insofar as possible within the timescales reasonably required by the User) including by promptly providing:

(a) the User with full details and copies of the complaint, communication or request;

(b) such assistance as is reasonably requested by the User to enable the User to comply with a Data Subject Request within the relevant timescales set out in the Data Protection Legislation;

(c) the User, at its request, with any Personal Data it holds in relation to a Data Subject;

(d) assistance as requested by the User following any Data Loss Event;

(e) assistance as requested by the User with respect to any request from the Information Commissioner's Office, or any consultation by the User with the Information Commissioner's Office.

12.8 The Council shall maintain complete and accurate records and information to demonstrate its compliance with this clause. This requirement does not apply where the Council employs fewer than 250 staff, unless:

(a) the User determines that the processing is not occasional;

(b) the User determines the processing includes special categories of data as referred to in Article 9(1) of the GDPR or Personal Data relating to criminal convictions and offences referred to in Article 10 of the GDPR; and

(c) the User determines that the processing is likely to result in a risk to the rights and freedoms of Data Subjects.

12.9 The Council shall allow for audits of its Data Processing activity by the User or the User's designated auditor.

12.10 The Council shall designate a data protection officer if required by the Data Protection Legislation.

12.11 Before allowing any Sub-processor to process any Personal Data related to this Agreement, the Council must:

(a) notify the User in writing of the intended Sub-processor and processing;

(b) obtain the written consent of the User;

(c) enter into a written agreement with the Sub-processor which give effect to the terms set out in this clause 12 such that they apply to the Sub-processor; and

(d) provide the User with such information regarding the Sub-processor as the User may reasonably require.

12.12 The Council shall remain fully liable for all acts or omissions of any Sub-processor.

12.13 The User may, at any time on not less than 30 Working Days' notice, revise this clause by replacing it with any applicable controller to processor standard clauses or similar terms forming part of an applicable certification scheme (which shall apply when incorporated by attachment to this Agreement).

12.14 The Parties agree to take account of any guidance issued by the Information Commissioner's Office. The User may on not less than 30 Working Days' notice to the Council amend this agreement to ensure that it complies with any guidance issued by the Information Commissioner's Office.

12.15 The Council acknowledges that damages may not be an adequate remedy for breach of the provisions under this Agreement. The User reserves the right to seek equitable relief for a breach, including relief in the form of an injunction or specific performance.

12.16 The Council shall indemnify and keep indemnified the User against all actions, claims, costs, damages, deductions, expenses losses and liabilities incurred by the User in respect of any breach by the Council (and/or any act or omission of any sub-contractor) of its obligations under this Clause 12.

12.17 The User may terminate this Agreement forthwith by providing written notice to the Council in the event that the Council breaches any terms of this Clause 12.

12.18 Upon termination or expiry of this Agreement the Council shall (and ensure any sub-processors shall) within 10 Business Days, unless the Council is legally required to preserve that type of data:

(1) Return all copies of information subject to the provisions under the DPA and or GDPR to the User in a secure format;
(2) Remove, delete or destroy any electronic Personal Data stored on the Council's IT systems and/or any physical Personal Data retained by the Council in any form whatsoever; and
(3) Certify to the User its compliance with this clause 12.18.

13. PUBLICITY

13.1 In the event that the User wishes to issue a press release, make a public statement connected with or arising from this Agreement, the User shall first inform the Council as to its contents and manner and timing of its presentation and publication.

14. FORCE MAJEURE

14.1 For the purpose of this **Condition 12**, "Force Majeure" means any event or occurrence which is outside the reasonable control of the Party concerned, and which is not attributable to any act or failure to take preventative action by the Party concerned, including (but not limited to) governmental regulations, fire, flood, or any disaster. It does not include any industrial action occurring amongst the staff of one or more of the Partners or any staff of any sub-contractor.

14.2 No Party shall be liable to the other for any delay in or failure to perform its obligations under the Agreement if such delay or failure results from a Force Majeure event. Notwithstanding the foregoing, each Party shall use all reasonable endeavours to continue to perform its obligations hereunder for the duration of such Force Majeure event.

14.3 If a Party becomes aware of circumstances of Force Majeure which give rise to or which are likely to give rise to any such failure or delay on its part it shall forthwith notify the other Party by the most expeditious method then available and shall inform the other Party of the period which it is estimated that such failure or delay shall continue.

15. NO PARTNERSHIP

15.1 For the avoidance of doubt and notwithstanding the terminology used, nothing in this Agreement shall be construed as a legal partnership within the meaning of the Partnership Act 1890 Act, the Limited Partnership Act 1907,

Limited Liability Partnerships Act 2000 or any other legislation concerning partnerships or limited liability partnerships.

15.2 save as permitted by this Agreement neither Party shall:

15.3 act or hold itself out as an agent of the other Party; nor

15.4 make any representations or give any warranties to third parties on behalf or in respect of the other Party;

15.5 bind or hold itself out as having the power to bind the other Party.

16. WAIVER

16.1 The failure of the Partner to exercise any right or remedy shall not constitute a waiver of that right or remedy. A waiver is only effective if communicated as such to the other Party in writing.

17. ENTIRE AGREEMENT

17.1 This Agreement constitutes the entire agreement and understanding between the Parties in respect of the matters dealt with therein. The Agreement supersedes any previous agreement between the Parties relating to such matters, all prior negotiations between Parties, and all representations and undertakings made by one Party to the other, whether written or oral. This condition shall not exclude liability in respect of any fraud or fraudulent misrepresentation.

18. GENERAL

18.1 A notice required or permitted to be given in connection with this Agreement shall be given in writing and addressed to:

18.1.1 For the Council: Henry St Clair Miller, Islington Council, 222 Upper Street, London, N1 1XR

18.1.2 For the User: The Adult Social Care Director, Camden Council , 5 Pancras Square, London N1C 4AG

or to such other person or address as may have been previously notified.

18.2 If any provision of this Agreement is held by any court or other competent authority to be invalid or unenforceable in whole or in part the validity of the other provisions of this Agreement and the remainder of the provision in question shall not be affected.

18.3 The Agreement shall be governed by the laws of England and the Parties agree to submit to the exclusive jurisdiction of the English courts.

18.4 Subject to condition 5.1.7 the Agreement shall not confer nor be deemed to confer a benefit on any third party for the purposes of the Contracts (Rights of Third Parties) Act 1999.

IN WITNESS whereof this Agreement has been executed by each of the Parties in accordance with their respective constitutions on the day and year above written

SIGNED FOR & ON BEHALF OF THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF ISLINGTON

HENRY ST CLAIR MILLER

Authorised Officer (1): Name

[redacted]

Signature

.....

Authorised Officer (1): Name

.....

Signature

SIGNED FOR & ON BEHALF OF

The Mayor and Burgesses of the London Borough of Camden of Town Hall , Judd Street , Camden London WC1H 9BD

[redacted]

Authorised Officer (1): Name

JODI PILLING

Signature

.....

Authorised Officer (1): Name

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Signature